



File No.: EXP202307239

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 20, 2023, a complaint was filed with registration number REGAGE23e00025508015 before the Spanish Agency for Data Protection against GUÍA PUBLICIDAD CONNECT, S.L. with NIF B93540979 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint regarding an unsolicited commercial phone call to their personal mobile phone, in which they were offered a subsidized Digital Kit, based on a subsidy received by the complainant and of which the complained party was aware.

The complainant states that they sent a request for access to their data to know the source of knowledge of the same, receiving a response in which they claimed to have known their data through the complainant, which is not in accordance with the truth of the facts, given that they were contacted previously by phone, so they already knew their data and name in advance and did not effectively inform about the origin of their data.

Along with the notification, a copy of their access request and the response obtained is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 6, 2023, as evidenced by the acknowledgment of receipt in the file.

On June 12, 2023, a response was received at this Agency indicating that they have addressed the access to the complainant's data and provide a copy of the response letter. They state that to collect data, they consult public access sources such as Google, search by municipalities, and filter by those services or professions that may be potential clients. When they obtain a phone number, they use it as a search criterion, which usually reveals more information, the company or professional that has that number.

They describe their way of acting: they call the phone and ask for the name of the company. Then, through a contact with whom they will continue to maintain the rest of the conversations to sell their product, if the person wants to contract with them, they request the rest of the personal data.

THIRD: On July 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), the provisions of Article 84.3) of Law 9/2014, of May 9, General Telecommunications Law (hereinafter, LGT), and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the

Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercise of the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories.

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Article 48 of Law 9/2014, of May 9, General Telecommunications Law (in force at the time the infringement was committed), under the heading "Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its section 1.b) the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights: (...)

b) To object to receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

III

Final provision six, section 2 of the LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into effect within one year from the publication of this law in the 'Official State Gazette.' Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

IV

Conclusion

The present file, consisting of a commercial call made by the respondent to the claimant's telephone number, which appears on a website as "(...)", must explain that the respondent seeks potential clients through a search engine in public networks by municipalities; in this specific case, they search on Google for "plumbers manzanares," and as can be verified, the claimant's telephone number appears. The other data referred to by the claimant has been obtained from the claimant themselves to contract the services or products offered by the respondent.

It should be noted that there is no record of the claimant having exercised their right to oppose or cancel their data with the respondent.

Thus, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of this Agency, and in accordance with what is stated by the Director of the Spanish Agency for Data Protection. IT IS AGREED:

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FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to GUÍA PUBLICIDAD CONNECT, S.L. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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